

25STCV12104 25STCV12104

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-15

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Case Number: 25STCV12104 Hearing Date: September 15, 2026 Dept: 510

No.

9 - Christopher Estes v. Virgin Galactic, LLC

Defendant

Galactic Co., LLC's Motion for Summary Judgment or Summary Adjudication

Defendant

Galactic Co., LLC moves for summary judgment of this action by Plaintiff Christopher Estes. In the alternative, Defendant moves for summary adjudication of 14 issues: each of Plaintiff's six causes of action (with two or more issues for the first, second, third, and fifth causes of action) and Plaintiff's claim for punitive damages.

Evidentiary

Objections

Plaintiff asserts seven objections to the Declaration of Taline Cole filed in support of the motion. Objection nos. 1, 2 and 4 are sustained based on lack of personal knowledge. The remaining objections are overruled.

Defendant asserts 30 objections to the Declaration of Christopher Estes filed in support of the opposition to the motion. Objection no. 18 (second sentence only) is sustained based on improper opinion. The remaining objections are overruled.

Factual

Background

In October 2023, Plaintiff injured his left shoulder while working for Defendant as a "CDL driver." Following his injury, Plaintiff was placed on modified, light-duty work and was prohibited from pushing, pulling, or lifting anything over twenty pounds, a restriction that was later reduced to five pounds. In April 2024, Defendant determined that it could no longer accommodate Plaintiff's modified work duties and placed Plaintiff on a leave of absence. Plaintiff's leave of absence was continually extended until Defendant terminated him on March 31, 2025. While Plaintiff requested a further extension of his leave, Defendant declined, stating that his restrictions did not allow him to perform essential job functions, but invited him to reapply once his restrictions had been lifted.

Legal

Standard for Summary Judgment or Adjudication

Summary

judgment should be granted where no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFerren (1995) 35 Cal.App.4th 733, 741.) Courts use a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

1st

Cause of Action: Disability Discrimination

Defendant is entitled to summary adjudication of this cause of action. "A prima facie case of disability discrimination under FEHA requires the employee to show he or she (1) suffered from a disability, (2) was otherwise qualified to do his or her job, and (3) was subjected to adverse employment action because of the disability." (Nealy v. City of Santa Monica (2015) 234 Cal.App.4th 359, 378 (Nealy).) For the second element, "a qualified individual is someone who is able to perform the essential functions of his or her job, with or without reasonable accommodation." (Ibid.) The typical burden-shifting framework used in most

discrimination and retaliation cases does “not apply in discrimination cases where ... the plaintiff presents direct evidence of the employer’s motivation for the adverse employment action.” (Wallace v. County of Stanislaus (2016) 245 Cal.App.4th 109, 123 (Wallace).)

In Wallace, the Court of Appeal explained, “[D]isability discrimination cases often involve direct evidence of the role of the employee’s actual or perceived disability in the employer’s decision to implement an adverse employment action. Instead of litigating the employer’s reasons for the action, the parties’ disputes in disability cases focus on whether the employee was able to perform essential job functions, whether there were reasonable accommodations that would have allowed the employee to perform those functions, and whether a reasonable accommodation would have imposed an undue hardship on the employer.” (Wallace, *supra*, 245 Cal.App.4th at p. 123.) “The FEHA itself recognizes that employers have legitimate reasons for discriminating against disabled persons (i.e., treating them differently)—reasons that have no parallel when the discriminatory employment action is based on race, religion, national origin, age or sex. Those legitimate reasons include whether a disabled employee, even with reasonable accommodation, can perform essential job duties and do so safely.” (Id. at p. 126.)

This case exemplifies the type of disability discrimination claim Wallace described. There is no dispute over why Defendant terminated Plaintiff. Defendant itself asserts it terminated Plaintiff because it could no longer continue offering him a leave of absence. Instead, Plaintiff argues Defendant could have extended his leave of absence or otherwise provided him another reasonable accommodation instead of terminating him.

A.

Essential Functions

Defendant meets its burden of showing Plaintiff could not perform his job’s essential functions. “ ‘Essential functions’ means the fundamental job duties of the employment position the individual with a disability holds.” (Gov. Code, § 12926(f).) A job “function may be essential because the reason the position exists is to perform that function.” (Id., subd. (f)(1)(A).) “Evidence of whether a particular function is essential includes” several factors such as “[t]he employer’s judgment as to which functions are essential,” “[w]ritten job

descriptions prepared before advertising or interviewing applicants for the job,” “[t]he amount of time spent on the job performing the function,” “[t]he consequences of not requiring the incumbent to perform the function,” “[t]he terms of a collective bargaining agreement,” “[t]he work experience of past incumbents in the job,” and “[t]he current work experience of incumbents in similar jobs.” (Id., subd. (f)(2).)

Defendant

presents evidence that Plaintiff worked as a “Senior CDL Driver.” (Cole Decl., Ex. 2.) Lifting heavy items was part of Plaintiff’s official job description. (See Perez-Yañez Decl., Ex. C.) Specifically, the job description lists “[l]oad[ing] materials, parts, & tools onto or into vehicles and/or trailers and properly secur[ing] with strapping, bracing, and padding to prevent shifting or damage during transit” as a job responsibility. (Id., at p. 2.) The job description also lists the following requirements: “Must be able to stoop, bend, crawl, and be able to maneuver in tight spaces . . . Physically able to handle items weighing up to 75 lbs (unassisted).” (Id., at pp. 2-3.) During his deposition, Plaintiff stated he understood his position had these physical requirements. (Def. Comp. of Exhibits, Ex. B, Pl. Depo. 64:13-21, 66:2-6.) When asked what his job duties were, Plaintiff responded:

I would collect [parcels] off that shelf, and I would deliver them to either their desk or their respective areas where they work. And if they had a large tool that needed to be moved from one hangar to the other, then I would use a forklift to put it on a trailer and transport it from one site to the next.

(Id., at 54:2-9.)

Plaintiff fails to raise a triable issue of material fact as to whether loading and unloading materials was an essential function of his job. “An applicant or employee has the burden of proof to establish that the applicant or employee is a qualified individual capable of performing the essential functions of the job with or without reasonable accommodation.” (Cal. Code Regs., tit. 2, § 11066(a).) Generally, “the essential functions of a job are a question of fact.” (Hastings v. Department of Corrections (2003) 110 Cal.App.4th 963, 968, fn. 6.) But “[a]bsent other evidence, [courts] may properly rely on the employer’s judgment and the written job description to determine the essential job functions.” (Ibid.)

Plaintiff does not dispute that, in his position, he “was responsible for transporting parcels, commercial freight, large manufacturing tools, supplies, and any other kind of delivery order that was needed within the Mojave campus, and the Tustin, and Pheonix [sic] locations.” (UMF No. 7.) In his deposition, Plaintiff effectively concedes that lifting materials was an essential function: when asked if there was any job he felt he could perform with his restrictions, he responded that he could do all the driving while his codriver “would help [him] load everything at the Mojave end.” (Pl.

Comp. of Exhibits, Ex. 1, Pl. Depo. 117:9-20.)

Plaintiff agreed that this proposal meant that his co-driver would take on extra duties on top of his already-assigned tasks. (See *id.*, at 122:4-7.) Needing two people to do one person’s job confirms that lifting objects was indeed an essential function of the driver position. Plaintiff does not provide any contrary evidence that would lead a reasonable trier of fact to conclude that loading and unloading materials was not an essential function of his job.

B.

Reasonable Accommodations

Although

Plaintiff fails to raise a triable issue of fact as to whether he could perform his essential job duties, Plaintiff can still establish the second element of this cause of action—that he is otherwise qualified to do the job—if he can prove that he could have performed his essential job duties with a reasonable accommodation.

However,

Plaintiff does not meet this burden.

Plaintiff raises several arguments to show that he could perform the job with a reasonable accommodation.

First,

Plaintiff contends that Defendant’s decision to allow modified light-work after his initial injury confirms that such accommodation was reasonable and allowed him to perform all essential duties. Plaintiff attests that he performed light-duty work after his injury, which required taking light parcels off a receiving shelf, putting them in a cart, and delivering them to a separate building on one of Defendant’s campuses. (Pl. Comp. of Exhibits,

Ex. 1, Pl. Depo. 84:21-85:17.) This work, which did not require heavy lifting, allowed him to perform his essential duties with a reasonable accommodation.

The Court disagrees. The fact that Defendant, at one point in time, offered a certain accommodation does not mean that the accommodation was per se reasonable or did not require eliminating the job's essential functions. "[A]n employer has no affirmative duty to create a new position to accommodate a disabled employee." (Raine v. City of Burbank (2006) 135 Cal.App.4th 1215, 1224.) Here, Defendant's accommodation for Plaintiff to only deliver light parcels was effectively a new, different job.

Second, Plaintiff argues that Defendant did not fully explore potential reasonable accommodations with him because there were other jobs within the company he could have performed. To show other jobs were available, Plaintiff cites his own testimony that "Josh Nicotra said he could find something for me to do down at the metal shop" that would only require using one hand. (Pl. Depo., 116:7-13.) This inadmissible hearsay testimony does not raise a triable issue of material fact as to whether Defendant could have assigned Plaintiff to another role in the company given his work restrictions. Importantly, Plaintiff himself testified that he did not know of any vacant roles in the metal shop at that time. (Pl. Depo., 116:14-17; 143:17-19.) In addition, Taline Cole, Senior Director of Culture, Employee Relations, and Community with Defendant, attests that "[t]here is no role in Galactic's metal shop operating a machine that only requires the use of one hand, and there were no open roles in Galactic's metal shop in 2024 and 2025." (Cole Decl., ¶ 25.) Maira Baha, Defendant's benefits manager, told Plaintiff that they had "already explored possible positions with [his] manager and discovered that there is nothing available within [his] restrictions." (Def. Comp. of Exhibits, Ex. S.)

Therefore, Plaintiff does not raise a triable issue of material fact that Defendant could have provided him a different role in the company as a reasonable accommodation.

Lastly, Plaintiff claims that Defendant could and should have extended his leave of absence as a form of reasonable accommodation. "[I]n appropriate circumstances, reasonable accommodation can include providing the employee ... additional unpaid leave for treatment." (Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226.) "[A] finite leave

can be a reasonable accommodation under FEHA, provided it is likely that at the end of the leave, the employee would be able to perform his or her duties.” (Ibid.) “ ‘Reasonable accommodation does not require the employer to wait indefinitely for an employee’s medical condition to be corrected.’ ” (Id. at pp. 226-227.)

The record shows that Plaintiff was not likely to be able to perform his duties after a leave of absence. Here, Plaintiff was granted a leave of absence that was continually extended over the course of almost one year, from April 14, 2024 to March 31, 2025. When Plaintiff was placed on leave in April 2024, his work restrictions dictated that he could not push, pull, or lift objects over five pounds. (See Def. Comp. of Exhibits, Ex. F.) In July 2024, Plaintiff’s condition deteriorated, and he was prohibited from lifting or carrying anything. (Id., Ex. I.) In January 2025, Plaintiff was prohibited from using his left upper extremity entirely. (Id., Ex. N.) In March 2025, Plaintiff was further prohibited from prolonged standing/walking, bending, stooping, climbing, kneeling, squatting or crawling. (Id., Ex. R.) After one year of leave, and increased physical restrictions, it was reasonable for the Defendant to decline to extend Plaintiff’s leave further. The accommodation Plaintiff sought was not reasonable because Defendant was not required “to wait indefinitely” for Plaintiff’s “medical condition to be corrected.” (Hanson, *supra*, 74 Cal.App.4th at pp. 226-227.)

Plaintiff presented no evidence showing when he could have returned to work and performed his essential functions. Instead, Defendant submits a copy of Plaintiff’s email to Defendant’s benefits manager in March 2025, wherein he states he “could possibly be able to go back to work in a couple of months.” (See Def. Comp. of Exhibits, Ex. S.) However, when asked about this email during his deposition, Plaintiff stated that he didn’t know if there were open positions that he believed he could do when he could possibly return—he simply knew that he could drive and help out in the metal shop. (Pl. Depo. 157:5-10.) Therefore, Plaintiff’s prediction that he “could possibly be able to go back to work in a couple of months” was not a prediction he would return to his driver position and perform the job’s essential functions. Plaintiff provides no evidence, such as a doctor’s note, stating that he would be able to return to work after leave and perform his essential functions.

While the Court acknowledges that the “reasonableness of an accommodation generally is a question of fact[.]” (Nealy, *supra*, 234 Cal.App.4th at p. 374) nothing in the record before the Court would permit

a trier of fact to find that Plaintiff could likely return to work as a driver and perform his essential job functions after a finite leave. Defendant had the right to terminate Plaintiff for his indefinite absence from the company.

2nd

Cause of Action: Failure to Engage in Interactive Process

Defendant is entitled to summary adjudication of this cause of action. Like the first cause of action, a claim for failing to engage in the interactive process requires that Plaintiff could perform his essential job duties. "In framing and defining" concepts including the "interactive process", " 'FEHA seeks to assure [that] "those employees with a disability who can perform the essential duties of the employment position with reasonable accommodation" have the opportunity to do so and are not discriminated against based on their disability.' " (Kaur v. Foster Poultry Farms LLC (2022) 83 Cal.App.5th 320, 343.) As stated above, the undisputed facts show Plaintiff was not capable of performing his position's essential functions.

The record also shows that, based on the undisputed facts, no reasonable accommodation was available. "To prevail on a claim for failure to engage in the interactive process, the employee must identify a reasonable accommodation that would have been available at the time the interactive process occurred." (Nealy, supra, 234 Cal.App.4th at p. 379.) With no available accommodation, Defendant cannot be liable for failing to engage in the interactive process.

3rd

Cause of Action: Failure to Provide Reasonable Accommodation

Defendant is entitled to summary adjudication of this cause of action. " 'The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability.' " (Cuiellette v. City of Los Angeles (2011) 194 Cal.App.4th 757, 766.) For the reasons discussed above, the undisputed facts show Plaintiff was not a qualified employee who could perform his position's essential functions.

Defendant also

meets its burden on summary adjudication by showing no reasonable accommodation was available. “[A]n employer is liable under [Government Code] section 12940(m) for failing to accommodate an employee only if the work environment could have been modified or adjusted in a manner that would have enabled the employee to perform the essential functions of the job.” (Nadaf-Rahrov v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 975.) The record shows the only requested accommodation Defendant did not provide was a leave of absence extending past March 31, 2025. As discussed above, that accommodation was not reasonable. Defendant therefore cannot be liable for failing to provide the accommodation.

4th Cause of Action: Retaliation

Defendant is also entitled to summary adjudication of this cause of action. “The elements of a cause of action for retaliation in violation of [FEHA] are: ‘(1) the employee’s engagement in a protected activity ...; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.’ ” (Brown v. Los Angeles Unified School District (2021) 60 Cal.App.5th 1092, 1105.)

Defendant meets its initial burden by showing Plaintiff cannot establish the second and fourth elements: retaliatory motive and causal link between it and the adverse action. For retaliation under FEHA, it is unlawful to take an adverse action against an employee: (1) “because the [employee] has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part” (Gov. Code, § 12940, subd. (h)), or (2) “for requesting accommodation” of disability, “regardless of whether the request was granted” (id., subd. (m)(2)).

As

discussed above, there is no dispute over why Defendant terminated Plaintiff. He requested a further leave of absence, and Defendant denied the request. Plaintiff presents no evidence permitting an inference that Defendant terminated Plaintiff because he opposed FEHA violations or because he requested an accommodation. Plaintiff makes no attempt to do so. He attempts only to dispute whether FEHA required Defendant to grant Plaintiff’s request for a leave of absence as a reasonable accommodation of his disability. Even if so, that would not suffice for Plaintiff’s retaliation claim. There is

no triable issue of material fact on the fourth cause of action.

5th

Cause of Action: Failure to Prevent Discrimination and Retaliation

Defendant

is entitled to summary adjudication of this cause of action. Government Code section 12940(k) provides that it is unlawful “[f]or an employer ... to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” This subdivision “creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages.” (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1313 (*Dickson*).)

This

claim cannot stand on its own without an underlying claim for violating FEHA. (See *Dickson*, *supra*, 234 Cal.App.4th at 1318.) Because Plaintiff cannot maintain a claim for discrimination or retaliation under FEHA, he likewise cannot maintain a claim for failure to prevent discrimination and retaliation.

6th

Cause of Action: Wrongful Termination in Violation of Public Policy

Defendant is entitled to summary adjudication of this cause of action. “[A] common law tort cause of action exists for at-will employees against employers who discharge them in violation of fundamental public policy.” (*Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1377.) Terminating an employee “ ‘ violates public policy when it contravenes the provision of a statute forbidding termination for a specified reason.’ ” (Ibid.)

Plaintiff

alleges his termination violated public policy because it violated FEHA, the California Family Rights Act, and “Article I, Section 1 of the California Constitution.” (Compl., ¶ 82.) This cause of action thus relies on and fails along with Plaintiff’s first and fourth causes of action.

Punitive

Damages

Because

Defendant is entitled to summary judgment as to Plaintiff's complaint, there is no basis for punitive damages against it.

Disposition

Defendant

Galactic Co., LLC's motion for summary judgment is granted. Defendant shall submit a proposed judgment in its favor forthwith.